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**Case Name: THE TRUST CREATED IN APRIL 2009 BY JENNIFER ROSENBLUM,
FORMERLY KNOWN AS JENNIFER MOORE**

Case No.: 24PR197073

INTRODUCTION

Petitioner Jennifer Rosenblum formerly known as Jennifer Moore (“Petitioner”) deposited \$103,100 in a trust account pursuant to an agreement with Kathryn Carey and Carey & Carey A Law Corporation (collectively, “Respondents”). The funds were to be held in trust to assure payment to Respondents if payment was found to be owing pursuant to litigation or a settlement. Petitioner contends that no litigation or settlement ever occurred. Pursuant to these allegations, Petitioner has filed a Petition to Declare Trust Revoked and Order to Pay Trust Principal to Settlor and for Money Had and Received. Respondents filed an opposition to the petition. Currently before the court is Petitioner’s motion for leave to amend her petition. Respondents have filed a notice of non-opposition.

DISCUSSION

I. Legal Background

Code of Civil Procedure sections 473, subdivision (a), and 576 provide that the court “may, in the furtherance of justice,” allow a party to amend any pleading. “It is well established that ‘California courts have “a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.” [Citation.] Indeed, “it is a rare case in which ‘a court will be justified in refusing a party leave to amend his [or her] pleading so that he [or she] may properly present his [or her] case.’ ”[Citation.]’ [Citation.] Thus, absent a showing of prejudice to the adverse party, the rule of great liberality in allowing amendment of pleadings will prevail. [Citation.]” (*Board of Trustees v. Superior Court* (2007) 149 Cal.App.4th 1154, 1163.)

“Generally, leave to amend must be liberally granted [citation], provided there is no statute of limitations concern, nor any prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation. [Citation.]” (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448 [81 Cal.Rptr.2d 243].) But, “it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment. [Citation.]” (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.) The court does not abuse its discretion by denying leave to amend where the facts stated do not constitute a cause of action. (See *IIG Wireless, Inc. v. Yi* (2018) 22 Cal.App.5th 630, 654.)

II. Merits of the Motion

Petitioner seeks to amend to allege facts learned in discovery. As discussed above, Respondents do not oppose the motion and a trial date has not been set. Accordingly, the motion for leave to amend is GRANTED.

In their notice of non-opposition, Respondents indicate that they would like to file an amended opposition to the petition within 30 days of service of the amended petition. That request is GRANTED. (Code Civ. Proc., § 471.5, subd. (a).)

In the motion, Petitioner requests that the court clarify with Respondents as to who is representing Respondent Kathryn Carey. Respondents indicate that they are represented by Christopher Sun, Esq. and Kathryn Carey has filed a substitution of counsel to that effect. Accordingly, it appears that the representation issue has been resolved.

CONCLUSION

The motion for leave to amend is GRANTED. Respondents may file an amended opposition to the petition within 30 days of service of the amended petition.